

1.

CASE #	CASE NAME	HEARING NAME
CVPS2407885	MOYA VS FCA US, LLC	HEARING ON MOTION TO TAX COSTS BY JESUS MOYA

Tentative Ruling: Code of Civil Procedure section 1032 establishes the general rule for awarding costs in civil action that “[e]xcept as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc., § 1032(b).) The term “prevailing party,” for purposes of costs award, includes “a party in whose favor a judgment of dismissal has been entered.” (Code Civ. Proc., § 1032(a)(4).) Here, it is undisputed that Defendant is the prevailing party for purposes of awarding cost under section 1032. Courts have recognized that this section does not come in conflict with the cost-shifting statute under Civil Code section 1794 of the Song-Beverly Act, which entitles the prevailing buyer the right to recover “costs and expenses, including attorney’s fees” while remaining silent regarding the right of prevailing defendant to recover its costs and fees. (*Duale v. Mercedes-Benz USA, LLC* (2007) 148 Cal.App.4th 718, 727.) Therefore, in a buyer’s action brought under the Song-Beverly Act, a prevailing defendant manufacturer is still entitled to recover its costs pursuant to Code of Civil Procedure section 1032.

Plaintiff contends that Defendant is not entitled to any costs as this case was dismissed without prejudice because a dismissal without prejudice is not a judgment on merits that is prerequisite to Defendant’s entitlement to cost as the prevailing party. This argument is without merit and unsupported by any legal authority. Defendant is the prevailing party in this case for purposes of costs award, irrespective of whether the dismissal was voluntary and without prejudice. The contention that a voluntary dismissal without prejudice is not a judgment that has been rejected by the courts. “A voluntary dismissal immediately resolves the action as to the dismissed defendant. It entitles the dismissed defendant to costs and sometimes attorneys fees as the prevailing party. (Code Civ. Proc., § 1032, subd. (a)(4).)” (*Sanabria v. Embrey* (2001) 92 Cal.App.4th 422, 427.) “Although a voluntary dismissal is generally not appealable, it is nevertheless effectively a ‘judgment’ within the meaning of California Rules of Court, rule 2(a).” (*Ibid.*) Plaintiffs cite *Associated Convalescent Enterprises v. Carl Marks & Co., Inc.* (1973) 33 Cal.App.3d 116, but that case does not stand for the proposition advanced by Plaintiffs. There, the court affirmed a motion for attorney fees brought under Civil Code section 1717 by a voluntarily dismissed defendant, holding that a voluntary dismissal for purposes of fee award under Civil Code section 1717 did not constitute a final judgment for purposes of determining whether defendant was the prevailing party under that provision. (*Id.* at 120-121.) Civil Code section 1717 authorizes recovery of attorney’s fees in an action on a contract to “the party in whose favor final judgment is rendered.” (Civ. Code, § 1717(b)(2).) The court’s determination did not concern the definition of prevailing party for purposes of costs award under Code of Civil Procedure section 1032(a)(4).

Nevertheless, Plaintiff raises a valid challenge to Defendant’s claim for attorney’s fees referenced under Item #10 of the cost memorandum. The costs which a prevailing party is allowed to recover under section 1032 includes attorney’s fees authorized by (1) contract, (2) statute, or (3) law. (Code Civ. Proc., §1033.5(a)(10)(A),(B)&(C).) Here, as Plaintiff points out, there is no basis for Defendant to be seeking attorney’s fees. Defendant indicates in its opposition that it “inadvertently” included a line with a request

for attorney fees, which suggests that Defendant is not objecting to Plaintiff's motion as to attorney's fees. Therefore, the motion shall be granted in part to tax cost as to Item #10.

Otherwise, the motion is denied for reason that Plaintiff makes no valid challenge to the remaining cost items in Defendant's Memorandum of Costs. The initial verification on the memorandum of costs is sufficient to establish the reasonable necessity of the costs being claimed. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary." (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.) Unless objection is made as to the entire memorandum, the motion to tax cost must refer to each item objected to by the same number and order as the corresponding cost item claimed on the memorandum and state why the item is objectionable. (Cal. Rules of Court, rule 3.1700(b)(2).) Here, Plaintiffs merely argue that the motion must be granted because Defendant provides no invoices, receipts, or documentation of any kind to support these charges. However, merely alleging in the motion that the costs are neither necessary nor reasonable without a supporting declaration does not meet the burden of showing that the costs are unnecessary. (See *County of Kern v. Ginn* (1983) 146 Cal.App.3d 1107, 1113-1114.) Only after the items are properly objected to, then the burden of proof is on the party claiming them as costs. (*Ladas v. California State Auto. Assn.*, *supra*, 19 Cal.App.4th at 774.) Therefore, Plaintiffs have not met their initial burden to shift the burden onto Defendant to provide proof of its costs.

Motion to Tax Costs GRANTED in Part. No award for attorney fees.

Defendant awarded Costs in the amount of \$2,578.20.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION TO COMPEL SPECIAL INTERROGATORIES FROM DEFENDANT COACHELLA VALLEY UNIFIED SCHOOL DISTRICT

Tentative Ruling: Any party may obtain discovery by propounding to any other party written interrogatories. (CCP §2030.010(a).) The party to whom interrogatories have been propounded shall respond in writing under oath to each interrogatory by: (1) an answer containing the information sought to be discovered; (2) an exercise of the party's option to produce writings; or (3) an objection to the particular interrogatory. (CCP § 2030.210(a)(1)-(3).) A party propounding interrogatories may move for an order compelling a further response if the party deems that an objection to an interrogatory is without merit or too general. (CCP §2030.300(a)(3).)

Special Interrogatory No. 11 asks the District to state in complete detail, how it learned Plaintiff had taken her son to the Latino Commission. In its initial response the District indicated that the current superintendent, Dr. Esparza learned about the case in April 2024 when she was informed by Beatriz Gonzalez that she was the president of the Latino Commission and CEO Contreras wanted to speak to Esparza. The supplemental